FIRST AMENDED COMPLAINT

This action seeks return of unconstitutional County code-enforcement penalties, relief concerning additional challenged assessments and liens, and meaningful access to compliance and hearing procedures through reasonable disability modifications. It distinguishes concurrent enforcement at separate properties and preserves the constitutional and disability claims. I assert that Life, Liberty, and Property each receive heightened constitutional protection. I request strict scrutiny and a heightened evidentiary burden before the County may deprive me of property. I do not accept a rule that lets a court pick which of those Rights receives that protection.

Jerry Nelson
2725 City View St Eugene OR 97405
541-606-5566
njerry653@gmail.com
Plaintiff, self-represented

UNITED STATES DISTRICT COURT DISTRICT OF OREGON EUGENE DIVISION

JERRY NELSON,
Plaintiff,
v.

LANE COUNTY GOVERNMENT, Defendant.

Case No. 6:25-cv-02031-MTK

FIRST AMENDED COMPLAINT Jury Trial Demanded

Parties, Jurisdiction, and Venue

1. I, Jerry Nelson, am an individual residing in Lane County, Oregon.

2. Defendant Lane County Government ("County") is an Oregon county and a public entity responsible for the County code-enforcement, civil-penalty, administrative-appeal, and lien practices challenged in this action.

3. This Court has jurisdiction under 28 U.S.C. §§ 1331 and 1343 over my claims under 42 U.S.C. § 1983 and Title II of the Americans with Disabilities Act ("ADA"), 42 U.S.C. §§ 12131–12134.

4. Venue is proper in the District of Oregon under 28 U.S.C. § 1391(b)(2) because a substantial part of the events and omissions giving rise to my claims occurred in Lane

County, within this District. The challenged enforcement and affected properties are located in Lane County. Divisional venue lies in the Eugene Division.

Facts — Separate County Enforcement Matters

5. My Howe Lane property is located at 82602 Howe Lane, Creswell, Oregon 97426. It was the subject of Lane County Land Management Division File No. 509-CA22-00334.

6. The County imposed two large fines on me at the same time concerning two separate, noncontiguous properties. The concurrent demands burdened my Right and ability to organize, finance, and carry out cleanup and to understand and respond to the separate enforcement matters. The property associated with the second concurrent fine is 88130 Greenhill Road, Eugene, Oregon 97402. I do not presently know the exact assessment period for that second fine.

7. I identify the two enforcement matters separately and do not contend that common ownership alone makes separate property violations a single infraction. I challenge the County's notice, access procedures, punitive assessments, and collection practices as applied to me. Each challenged assessment must be connected to the property, charged condition, and assessment period to which it actually relates.

8. The County alleged accumulation, collection, storage, or disposal of solid waste or other debris under the nuisance provisions of Lane Code Chapter 9. My available account identifies Lane Code § 9.584. The physical conditions at 82602 Howe Lane were in need of cleanup. I was making good progress on that cleanup without the County. I have proof in the form of receipts from the Lane County Landfill.

Facts — Notice, Compliance, and Opportunity to Contest

9. On or about April 6, 2023, the County issued an Order to Comply requiring removal of identified waste and debris, with a stated compliance date of April 10, 2023. It addressed the order to 410 W. 27th Avenue, Eugene, Oregon 97405, where I had not lived for approximately seventeen years.

10. During the relevant period, my mailing address was 2725 City View Street, Eugene, Oregon 97405. Material enforcement notices were sent to my former address at 410 W. 27th Avenue, Eugene, Oregon 97405.

11. On or about April 27, 2023, the County issued a Notice of Failure to Comply stating that a civil penalty of approximately $1,680 per day would begin on May 3, 2023, and continue to accumulate until certified compliance. I do not presently know the notice's complete list of identified violations, the full penalty calculation, or the stated appeal period.

12. The County alleges that I signed a certified-mail return receipt dated June 2, 2023. I do not remember signing that receipt or opening the letter. I do not assert that my lack of recollection establishes that the signature is false. I do not concede that receiving a letter, without knowing what is inside it, is constitutionally adequate due process. I was already being fined daily by the City of Eugene. I was overwhelmed and was unable to process everything fast enough because of my disability.

13. The County did not contact me by telephone about the 2023 penalties. I do not presently remember the exact dates when I first learned of the notices, daily assessments, or lien. My first actual awareness of each was after the fines had accumulated to the total they reached. I am an old man, and I cannot take too much at once. I was already getting five daily fines. The County officials knew about the City's fines happening at the same time. If the County had called me on the phone to inform me of the excessive fines, we could have worked out a plan that was reasonable for my situation and disabilities.

14. The stated May 3, 2023 beginning of the daily penalties preceded the June 2, 2023 date on the receipt the County invokes. I assert that penalties began without reasonably effective advance notice and an opportunity for me to respond before they accumulated. The County never explained to me how I could contest the fines. I never called the City about it. I assert that my not calling is consistent with my not knowing that I was being fined daily.

15. The Notice of Failure to Comply may have described a right to appeal. I am unaware whether it did. I assert that I had a right to be made aware verbally, or served as a person is served with a lawsuit or a fine. I assert that I should have been given the telephone number of the Oregon State Bar so I could seek legal consultation. I did not appeal File No. 509-CA22-00334. My September 2025 appeal concerned a different matter, File No. 509-CA25-00339, involving 88130 Green Hill Road. I do not treat that appeal as an appeal of the 2023 notice. I do not treat File No. 509-CA25-00339 as the 2023 concurrent fine.

16. My mental-health limitations and difficulty using computers and completing appeal paperwork impaired my ability to understand and use the notice, compliance, and appeal processes. Concurrent enforcement at the two County properties, together with City enforcement demands, overwhelmed me. This action challenges the County's conduct. I do not attribute unidentified City conduct to the County. I assert that I was gang stalked by the City and the County and targeted mostly for their financial gain.

17. I assert that the County did not make sufficiently clear what I needed to do to comply while imposing accumulating daily penalties. I do not presently recall the particular correction requirements I could not understand or any clarification I requested. My challenge concerns the adequacy and accessibility of the process actually available, not an assertion that the notice contained no appeal language. I assert that the County took advantage of my disability for financial gain.

Facts — Assessments, Collection, and Cleanup

18. On or about September 21, 2023, the County signed an order concerning accumulated penalties. On September 22, 2023, it recorded a lien.

19. On or about November 1, 2023, when I sold property at 1625 Bailey Hill Road, the County collected approximately $118,759, including interest, from the sale proceeds in connection with File No. 509-CA22-00334. The sale property was the source of collection. The closing statement and County payoff statement identify the allocation among penalty principal and interest. I do not presently state that allocation.

20. None of the approximately $118,759 the County took from me for the fines went to cleaning up the property. Taking that money took the money I needed to clean up the property and resulted in more fines. I assert that if the property had actually been dangerous, the County should have paid for the cleanup. I assert that it was not dangerous or a serious problem, and that is why the County did not pay for the cleanup.

21. I estimate that correcting the conditions at the Howe Lane property would have cost approximately $10,000 for labor, equipment, and disposal fees. That estimate concerns that property, not an unverified combined cost for both properties.

22. I undertook cleanup by renting 30-yard dumpsters from Sanipac and loading equipment using a front-end loader, and I paid workers to load my pickup with trash to take to the dump. I have receipts concerning those efforts. I do not presently state the dates and expenditures. Trespassers and squatters contributed significantly to the accumulation of materials at the property.

23. I assert that the punitive assessments were grossly disproportionate and excessive to the gravity of the charged property-code violation, considering my responsibility for the conditions, the contribution of third parties, my cleanup efforts, and the relationship between punishment and remediation. I was not aware of the actual public-health, safety, environmental, or other harm the County attributes to the charged conditions, or of the County's stated basis for finding such harm. I did not realize there was anything I should have been concerned about. If I had known of a safety issue, I would have taken care of it immediately. The matter involved a noncriminal property-code violation. I do not contend that this classification alone establishes that it was harmless.

24. A separate instrument dated May 23, 2025, recorded as Reception No. 2025-015117, states an amount of approximately $134,400. None of that money went to the cleanup. I assert that if the money taken from me had been used for the cleanup, I would not owe an additional approximately $134,400. I assert that additional penalties continued after the November 2023 collection.

25. The County's foreclosure papers in state case 25CV55934 identify 8620 Howe Lane, Creswell, Oregon, and a May 23, 2025 nuisance lien. My Howe Lane property address is 82602 Howe Lane.

26. My motion for leave to amend states that this federal action was filed on October 31, 2025. The dates on which I knew or had reason to know of each challenged assessment, lien, and collection are unknown.

27. I seek relief for the County's underlying enforcement, assessment, and collection conduct. I do not ask this Court to reverse a state-court judgment or conduct an appeal of state foreclosure proceedings. I seek prospective relief only for continuing County conduct

within this Court's authority and do not treat this statement as resolving the effect of any actual state judgment.

Facts — Disability, Requested Modifications, and County Knowledge

28. I have diagnosed PTSD, hoarding disorder, schizotypal personality disorder, and depression. These conditions substantially limit concentrating, organizing, thinking, and completing multistep tasks. They affected my ability to manage cleanup and use complex enforcement and appeal procedures.

29. On April 15, 2025, I personally delivered a handwritten letter to the County describing my mental-health limitations and requesting suspension of penalties so I could devote my resources to cleanup, hire assistance, and document progress. County personnel made a photocopy, and I retained the original.

30. I also attended two meetings in a County conference room with code-enforcement personnel and a hearings official. I showed medical records and a medication list and requested more time to comply and the opportunity to devote money otherwise demanded as fines to removal of the materials. I do not presently recall the meeting dates, participants' names, or their exact responses.

31. County personnel verbally acknowledged awareness of my condition but did not provide the requested modifications. I do not claim to recall specific words of denial. The County did not respond to my April 15, 2025 letter, and I assert that additional penalties continued afterward.

32. I contend that additional cleanup time, a temporary suspension of additional penalties while documented cleanup progressed, notices at my current address, and communication suited to my limitations would have allowed meaningful access to compliance and hearing procedures while permitting lawful enforcement to continue. Because I am overwhelmed, I needed the County to make me aware verbally, to communicate with me verbally to create the cleanup timeline and milestones, and to allow the fine money to be used to pay for the cleanup. The specific time period and milestones remain unresolved.

33. The simultaneous demands concerning separate properties affected the amount of time, assistance, and organization I needed to comply. I seek consideration of that actual disability-related burden in providing reasonable modifications, not an automatic cancellation of one fine merely because another property was also subject to enforcement.

34. The November 2023 collection preceded the April 15, 2025 letter. I do not attribute that earlier collection to a failure to respond to the later letter. I assert that the County knew about my disability for many years. I assert that the County knew about me being on the Hoarders show in 2011 and about many years of attacks on my properties by criminals, with no protection by the police. The undated meetings do not themselves establish the earlier knowledge date. My ADA claim concerns enforcement after the County knew of my disability and my need for modification.

35. I seek recovery for injury caused by the challenged County conduct, including the collected penalties and additional disability-related pecuniary loss after the County had notice. I also seek recovery for emotional distress, but only under a claim that permits that remedy. I do not presently state the symptoms and duration. County officials have been callous and negative toward me.

Facts — County Policies, Decisions, and Procedural Safeguards

36. The County used its written Chapter 5 administrative-enforcement framework, penalty schedule, and official assessment orders to impose daily penalties, record liens, and collect sale proceeds. I challenge the resulting punitive assessments as applied to my actual conditions and responsibility, and the official notice and access practices identified below. I do not seek County liability solely because it employed a person who acted improperly.

37. I do not presently know the rate assigned to each property, each violation counted, and each day charged. I contest any punitive amount not justified by my actual conduct and the charged condition. I do not assume that the two concurrent matters were necessarily prior violations, that the County used a particular multiplier, or that separate charges are unlawful merely because the properties share an owner.

38. The County states that its service practice was to mail enforcement documents to the owner's address shown in current tax records. I challenge that practice as applied to my

former-address notices, together with the County's treatment of service as sufficient to proceed with daily assessments, an enforcement order, a lien, and collection. I assert that the County knew or should have known that these particular notices were not reasonably calculated to reach me because I had not responded and because the notices went to an address where I had not lived for approximately seventeen years. I assert that if a compliance officer were fining that officer's mother, friend, or relative almost $2,000 a day, the officer would call, warn them, and help them remedy the situation. The officers did not do that for me. I assert that they were callous because it was not their money. I assert that they purposely did not want me to know. They never called me once.

39. The County's process combined investigation, prosecution, administrative determination, and collection. I assert that it failed to afford me a meaningful and accessible opportunity to contest the charges and the penalty calculation. I dispute the sufficiency of the photographic accusations to establish the charged condition, my responsibility, and the justification for the punitive amount.

40. I seek notice of the charges, an accessible opportunity to present my response and cleanup evidence, a decision by an impartial decision-maker, and findings connecting any penalty to substantiated conditions and responsibility. I do not assert that photographs cannot be evidence, that every administrative assessment must begin with a court lawsuit, or that combining administrative functions alone establishes unconstitutional bias. I assert that a label such as dangerous does not make the condition dangerous. I assert that Life, Liberty, and Property each receive heightened protection, and that the County bears a heightened evidentiary burden before it may deprive me of any of them. Without proper notice, I could not meaningfully be heard, object to the County's evidence, or submit evidence of my own.

41. I assert that the County's official assessment mechanism and enforcement order caused the punitive assessments and collection, its official service practice caused the challenged notice deprivation, and its handling of my disclosed need for modification caused the later access injury.

Count I — Title II of the ADA: Denial of Reasonable Modification and Meaningful Access

42. I incorporate paragraphs 1 through 41.

43. I am a qualified individual with disabilities for purposes of access to the County's code-enforcement, compliance, administrative-appeal, and hearing processes. The County is a public entity whose services, programs, and activities are subject to 42 U.S.C. § 12132.

44. Because of the limitations described in paragraph 28, I needed the reasonable modifications described in paragraph 32 to have meaningful access to those processes. I personally disclosed the disability-related need in my April 15, 2025 letter, described in paragraph 29, and County personnel copied it. I also requested modifications at the meetings described in paragraph 30. I contend that a reasonable extension, assistance, and adjustment to the penalty process would not fundamentally alter lawful nuisance abatement or excuse the cleanup requirements.

45. I assert that the County failed to respond to that request or provide necessary reasonable modifications while continuing enforcement, thereby denying meaningful access by reason of disability. I challenge the access barrier arising from my disability, not merely a lack of computer experience unrelated to disability. I assert that the quality of this legal document does not mean that I am computer literate. I am not. I had help.

46. The County's notice of my limitations and request, its personnel's acknowledgment of my condition, and its continued inaction while enforcement continued support my contention of disparate impact at least. I assert that the conduct became deliberate indifference after the County knew I was disabled. I assert that the County should have known it was dealing with many elderly and disabled people, should not have been so callous and cruel, and should have provided reasonable accommodations. I assert that this is not a misuse of disparate-impact protection. I assert that it is what those protections are designed to address.

47. I seek declaratory and appropriate prospective relief and compensatory damages for legally recoverable injury caused by that denial after the County had notice. I do not attribute the November 2023 collection to the April 2025 letter or seek a damages category unavailable under Title II.

Count II — Fourteenth Amendment Procedural Due Process Under 42 U.S.C. § 1983

48. I incorporate paragraphs 1 through 41.

49. I had protected property interests in my sale proceeds and real property. Acting under color of state law, the County assessed daily penalties, recorded a lien, and collected approximately $118,759, including interest, from my November 2023 sale proceeds.

50. I assert that the notice and opportunity to contest these deprivations were constitutionally inadequate as applied. Life, Liberty, and Property each require heightened procedural protection. I assert that a court does not get to pick which of those Rights receives that protection. My challenge includes the former-address mailings, the asserted commencement of penalties before the June 2 receipt, the accessibility and timing of the appeal process, and the denied opportunity to contest the factual basis and amount of the assessment. I assert that I was entitled to verbal notice, or to service comparable to service of a lawsuit or a fine, and to the telephone number of the Oregon State Bar so I could seek legal consultation. A description of an appeal on paper does not resolve whether I had reasonably effective notice and a meaningful opportunity to use it.

51. I assert that the County's official notice practice and its implementation of the assessment and collection procedures caused the deprivation without adequate process. I seek recovery for the monetary and property injury caused by those practices, including penalties I could have contested and addressed through effective notice and accessible procedures, without presuming that every procedural defect necessarily entitles me to repayment of every charge.

Count III — Eighth Amendment Excessive Fines Under 42 U.S.C. § 1983

52. I incorporate paragraphs 1 through 41.

53. I assert that the accumulating civil penalties served at least partly to punish or deter noncompliance and constituted fines subject to the Eighth Amendment, applicable to the County through the Fourteenth Amendment. I distinguish that punitive component from actual remediation charges or other nonpunitive sums.

54. I assert that the punitive assessments were grossly disproportionate to the actual gravity of the charged conditions. My challenge concerns the nature and extent of each violation and my actual culpability, any connection to other unlawful activity, other penalties

available for the same offense, and the harm caused. My estimated $10,000 remediation cost, my cleanup efforts, and the contribution of third parties bear on that assessment but are not the sole test. I assert that the County would not accept a similarly disproportionate penalty if that penalty were imposed on the County. That is part of why I assert the punishment is excessive. I request return of the excessive penalties. I do not request a separate punitive-damages award against the County.

55. The existence of two different properties does not resolve the constitutionality of either punishment. I seek examination of the rate, charged violations, assessment duration, and punitive total for each identified matter rather than an assumed single fine cap across all properties. I do not seek duplicate recovery or aggregate unrelated assessments without identifying their underlying conduct.

56. I assert that the County imposed and collected the challenged penalties through its official penalty framework and assessment orders. I seek return of the unconstitutional punitive portion of the approximately $118,759 collected, appropriate interest, and authorized relief concerning additional excessive assessments and associated liens.

Count IV — Fourteenth Amendment Substantive Due Process Under 42 U.S.C. § 1983

57. I incorporate paragraphs 1 through 41.

58. Independently of my notice and Excessive Fines Clause objections, I contend that the County arbitrarily used its enforcement authority to demand escalating sums while failing to make compliance requirements sufficiently clear or address my disclosed disability-related barriers and documented cleanup efforts. I assert that Life, Liberty, and Property each receive heightened protection. The Fifth Amendment states that no person shall be deprived of life, liberty, or property without due process of law. The Fourteenth Amendment applies that protection against the County. I assert that a court does not get to pick which of those Rights receives heightened protection. They all do. I request strict scrutiny and a heightened evidentiary burden before the County may deprive me of my property through these fines. Substantial refers to size, quantity, or extent. Substantive refers to meaning, essence, or content. This claim concerns the real justification for the deprivation, not merely whether the fine was large. Having to pay to remove the material is not arbitrary. I want to pay to get the

property cleaned up. The County's excessive fines are preventing that cleanup. The amount of the fines was arbitrary because it was not based on any quantity or quality of harm other than time elapsed. I do not contend that ownership exempts me from lawful property regulation. I contend that the heightened evidentiary burden protects my property. If the Court does not apply the strict scrutiny and heightened burden I request, I assert that the amount still fails the lesser standard the Court might apply. Preserving that alternative does not mean I accept the lesser standard.

59. I plead this claim in the alternative only insofar as the arbitrary conduct is not governed exclusively by a more specific constitutional protection. I preserve the heightened protection requested in paragraph 58. I do not treat every notice defect, excessive fine, or failure to modify as an independent substantive-due-process violation, and I do not seek duplicated recovery.

Requested Relief

60. I request judgment restoring the unconstitutional penalties collected from my November 2023 sale proceeds, from the approximately $118,759 collected including interest, to the extent established and legally recoverable. I seek identification of the recoverable punitive principal and any recoverable associated interest or charges without counting any component twice.

61. I request a declaration concerning the unlawful County practices established in this action. I request that the Court apply strict scrutiny and a heightened evidentiary burden to the County's deprivation of my property, because Life, Liberty, and Property each receive that heightened protection and a court does not get to pick among those Rights. I request prospective relief requiring constitutionally adequate notice, accessible enforcement and hearing procedures, reasonable disability modifications, and cessation or correction of additional unlawful assessments. I seek release or correction of related liens only to the extent within this Court's authority. I do not request reversal or vacatur of a state-court judgment or blanket removal of unrelated lawful liens.

62. I request compensatory damages for additional proven injury caused by the County's conduct, including compensatory damages of $1,000,000 to the extent supported by proof and recoverable under the applicable claim.

63. If I establish a violation of my constitutional rights but not compensable injury for that violation, I request nominal damages under 42 U.S.C. § 1983.

64. I request prejudgment and postjudgment interest as allowed by law, costs, attorney fees only if legally recoverable, and other relief the Court is authorized to grant.

65. I demand a Jury trial on all issues so triable.

Dated: September 30, 2026

Respectfully submitted,

/S/Jerry Nelson

_____

Jerry Nelson, Plaintiff, self-represented
2725 City View St Eugene OR 97405
541-606-5566
njerry653@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that on _____, 2026, I served a true and correct copy of this First Amended Complaint on counsel for Defendant Lane County Government by depositing it in the United States Mail, first-class postage prepaid, addressed as follows:

Mallory R. Beebe, OSB #115138 125 East Eight Avenue Eugene, Oregon 97401

Attorney for Defendant Lane County Government

Respectfully submitted,

Date: _____, 2026

/S/Jerry Nelson _____ Jerry Nelson Self-Represented Plaintiff